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Case Number: 25PSCV04367 Hearing Date: September 17, 2026 Dept: 6

CASE NAME: LDJ Partners v. Gary D. Delgado, et al.

1. Defendant Gary Delgado's Motion to Set Aside Default Judgment as Void; and
2. Defendant Rosa Delgado's Motion to Set Aside Default Judgment as Void and/or Vacate Entry of Default and Default Judgment Due to Surprise and/or Excusable Neglect

TENTATIVE RULING

The Court DENIES Defendant Gary Delgado's Motion to Set Aside Default Judgment as Void.

The Court DENIES Defendant Rosa Delgado's Motion to Set Aside Default Judgment as Void and/or Vacate Entry of Default and Default Judgment Due to Surprise and/or Excusable Neglect.

However, if the parties consent to eliminate the treble damages award from the default judgment, the Court will modify the monetary damages portion of the June 26, 2026 default judgment to \$0.00 as to Defendants Gary Delgado and Rosa Delgado.

Plaintiff is ordered to give notice of the Court's rulings within five calendar days of this order.

BACKGROUND

This is a lending dispute. On December 5, 2025, plaintiff LDJ Partners (Plaintiff) filed this action against defendants Gary D. Delgado (Gary), Rosa A. Delgado (Rosa), Tierra Rose, LLC (Tierra Rose), Education Consortium, LLC (Education Consortium), Andrew Dean Delgado (Andrew) (collectively, Defendants), and Does 1 through 50, alleging causes of action for violation of the Uniform Voidable Transfer Act, fraud – concealment, violation of Penal Code 496, and breach of contract – specific performance. On January 23, 2026, Plaintiff dismissed the Second Cause of Action for fraud – concealment. On February 20, 2026, Plaintiff dismissed Andrew without prejudice.

On June 26, 2026, the Court entered default judgment in favor of Plaintiff and against Defendants Gary, Rosa, and Tierra Rose on the First, Third, and Fourth Causes of Action for violation of the Uniform Voidable Transfer Act, violation of Penal Code 496, and breach of contract – specific performance, respectively. The Court entered default judgment in favor of

Defendant Education Consortium and against Plaintiff on all causes of action in the complaint against Education Consortium.

On August 3, 2026, Gary moved to set aside the default judgment as void and Rosa moved to set aside the default judgment as void and/or vacate the entry of default and default judgment due to surprise and/or excusable neglect. On September 3, 2026, Plaintiff opposed both motions. On September 10, 2026, Gary and Rosa each replied to Plaintiff's oppositions.

Defendant Gary Delgado's Motion to Set Aside Default Judgment as Void

LEGAL STANDARD – Gary

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).)

REQUESTS FOR JUDICIAL NOTICE – Gary

The Court GRANTS Gary's requests for judicial notice as to Exhibits B, C, D, and E. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.) The Court DENIES Gary's request for judicial notice as to Exhibit A, as the Court is able to review its own docket.

PRELIMINARY ISSUES – Gary

Gary's motion misquotes the language in *Mechanics Bank of Richmond v. Thole* (1971) 20 Cal.App.3d 884, 886: "[a] void judgment may be set aside either under statute [C.C.P. § 473(d)] or independent of statute." (Motion, 14:14-15.) That quotation does not accurately quote the language stated in that case. The Court admonishes Gary's counsel to ensure case quotations are accurate going forward.

Additionally, the Court notes that a number of Gary's case citations omitted the word "App.", which created cite checking issues. The Court admonishes Gary's counsel to ensure case citations are accurate going forward.

DISCUSSION – Gary

Summary of Arguments

Gary contends the default judgment entered June 26, 2026 is void because it awards \$359,858.43 in monetary damages, an amount that exceeds the relief demanded in the operative complaint. Gary argues the complaint stated no dollar amount of damages, instead seeking recovery "in an amount to be proven at trial," and that no statement of damages under Code of Civil Procedure section 425.11 or section 425.115 was served. Gary contends that under Code of Civil Procedure section

580, a default judgment granting relief beyond the amount demanded in the complaint exceeds the court's jurisdiction and is void as a matter of law.

In opposition, Plaintiff first offers to resolve the motion by accepting a modification that eliminates the Penal Code section 496 treble-damages award while preserving the non-monetary relief, i.e., the voiding of the fraudulent transfer and restoration of title to Tierra Rose, LLC, which Gary does not challenge. If the Court does not adopt that modification, Plaintiff argues the judgment is not void because a demand for relief "may be made in any part of the complaint, not just in the prayer for relief," and the body of the complaint (at paragraphs 18 and 36) alleged the unpaid principal balance of exactly \$119,952.81. Plaintiff contends that this pleaded principal, combined with the prayer's express request for treble damages under section 496, subdivision (c), gave Gary notice that \$359,858.43 (three times \$119,952.81) could be awarded. Alternatively, Plaintiff argues that if the award exceeds the amount properly pled, the Court should leave the underlying default in place and reduce the judgment to the relief properly pled rather than vacate it.

In reply, Gary agrees that Plaintiff's proposed modification of dismissing the Third Cause of Action and/or reducing the monetary award to \$0.00 would remedy the issue, but argues it does not moot the motion because that relief is precisely what the motion seeks. On the merits, Gary argues that the \$119,952.81 figure in paragraph 18 is only a statement of fact as to the existence of the obligation, not a demand for monetary relief. Relying on *Sass v. Cohen*, Gary stresses that while demands may appear anywhere in the complaint, "allegations of fact which [happen to] include numbers" do not count as demands for relief. Because the complaint contains no demand stating the amount of damages sought, Delgado argues the monetary judgment was entered in excess of jurisdiction and at least the monetary portion must be set aside.

Analysis

The Court finds Gary's motion unpersuasive and unavailing. "[A] prayer for damages according to proof passes muster under section 580 only if a specific amount of damages is alleged in the body of the complaint. [Citation.]" (*Becker v. S.P.V. Constr. Co.* (1980) 27 Cal.3d 489, 494.) Paragraph 18 of the complaint alleges Plaintiff loaned \$119,952.81, which it defines as the "Obligation." (Compl., ¶ 18.) Paragraph 36 of the complaint alleges that at the time of the alleged voidable transfer, Gary and Rosa were obligated to pay a debt of more than \$119,952.81, i.e., the same loan amount alleged in paragraph 18, and that a default on that debt had occurred. (Compl., ¶¶ 18, 36.) Paragraph 51 of the complaint alleges, among other things, that "Plaintiff has been damaged in the amount of the value of the unpaid principal balance..." (Compl., ¶ 51.) The Court finds these allegations not just "allegations of fact which include numbers," but rather part of Plaintiff's principal damages claim. (*Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 866.) Moreover, the prayer for relief expressly prays for treble damages under Penal Code section 496, subdivision (c). (Compl., Prayer for Relief, 14:8-9.) Accordingly, the \$359,858.43 amount awarded in the default judgment is simply three times the unpaid principal loan balance of \$119,952.81, of which Gary had adequate notice in the complaint. (See Default Judgment (6/26/26).) Furthermore, Plaintiff correctly notes that Gary does not challenge the title transfer portion of the judgment. Accordingly, the Court finds that the default judgment does not exceed the amount alleged in the complaint.

Nevertheless, if Gary accepts Plaintiff's offer to eliminate the treble damage award, the Court will modify the judgment accordingly and reduce the damages portion of the default judgment to \$0.00. (See Opp., 2:2-8; Reply, 2:1-2; *Phelan v. Superior Ct. in & for City & Cnty. of San Francisco* (1950) 35 Cal.2d 363, 373 ["It is well settled, of course, that such an order modifying a prior judgment is proper if made with the consent of the parties. [Citations.]"]; *Greenup v. Rodman* (1986) 42 Cal.3d 822, 830 [plaintiff given option to accept reduced judgment or file an amended complaint and reopen the default].)

Based on the foregoing, the Court DENIES Defendant Gary Delgado's Motion to Set Aside Default Judgment as Void. However, if the parties' consent to eliminate the treble damages award from the default judgment, the Court hereby modifies the monetary damages portion of the June 26, 2026 default judgment to \$0.00 as to Defendant Gary Delgado.

Defendant Rosa Delgado's Motion to Set Aside Default Judgment as Void and/or Vacate Entry of Default and Default Judgment Due to Surprise and/or Excusable Neglect

REQUESTS FOR JUDICIAL NOTICE – Rosa

The Court GRANTS Rosa's requests for judicial notice as to Exhibits B, C, D, E, F, G, and H. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.) The Court DENIES Rosa's request for judicial notice as to Exhibit A, as the Court is able to review its own docket.

PRELIMINARY ISSUES – Rosa

Rosa's motion misquotes the language in *Mechanics Bank of Richmond v. Thole* (1971) 20 Cal.App.3d 884, 886: "[a] void judgment may be set aside either under statute [C.C.P. § 473(d)] or independent of statute." (Motion, 14:14-15.) That quotation does not accurately quote the language stated in that case. The Court admonishes Rosa's counsel to ensure case quotations are accurate going forward.

Additionally, the Court notes that a number of Rosa's case citations omitted the word "App.", which created cite checking issues. The Court admonishes Rosa's counsel to ensure case citations are accurate going forward.

DISCUSSION – Rosa

Summary of Arguments

Rosa Delgado contends the default judgment is void because it awarded \$359,858.43 although the complaint demanded no dollar amount and sought damages only "in an amount to be proven at trial," exceeding the Court's jurisdiction under Code of Civil Procedure section 580. Rosa further contends the judgment is void for defective service, arguing she was never personally served and that no copy of the summons and complaint for her was left with her husband, so substitute service under section 415.20, subdivision (b), was not completed. In the alternative, Rosa argues the default and judgment should be vacated under Code of Civil Procedure section 473, subdivision (b), for surprise and excusable neglect, because she was unaware that service had been legally completed given the multiple defendants. Rosa maintains the motion is timely, both because a void judgment may be attacked at any time and because the motion was filed within six months of the entry of default and of the judgment. Rosa asks the Court to set aside the default and judgment and permit her to respond to the complaint.

In opposition, Plaintiff states that it would accept a modification eliminating the Penal Code section 496 treble-damages award, provided the Court preserves the remainder of the judgment, i.e., voiding the transfer and restoring title to Tierra Rose, which Rosa does not challenge. Plaintiff argues that if the Court declines that modification, the judgment nonetheless complies with section 580 because the body of the complaint alleged the specific unpaid principal of \$119,952.81 and expressly sought treble that sum, giving notice of the calculable \$359,858.43 award. On service, Plaintiff argues the registered process server's return is presumed valid under Evidence Code section 647, that Gary Delgado admits he understood the server intended to serve both spouses and that the single envelope contained two copies of each document, and that the mailing to Rosa is presumed received under Evidence Code section 641. Finally, Plaintiff argues Rosa cannot show excusable neglect because her only excuse is circular, i.e., it depends on accepting her service defect, and because she was charged with notice through papers mailed to her in January, April, and May, she made a tactical decision not to respond.

In reply, Rosa contends that Plaintiff's proposed modification does not moot the motion, because it is part of the relief she seeks and would resolve the matter only if the court also rejected her service and section 473, subdivision (b) grounds. Rosa argues the \$119,952.81 figure is a factual recital, i.e., "allegations of fact which [happen to] include numbers" rather than a demand for relief, so under *Sass v. Cohen* the monetary judgment remains void. On service, Rosa argues the Evidence Code section 647 presumption is rebuttable and was rebutted, emphasizing that all agree only one envelope was handed to Gary and that the process server never denies she had a second envelope, and she asks that all photographs and video be produced before the court rules. Rosa maintains her failure to respond was at worst excusable neglect or surprise, that no

authority requires a defendant to respond before service is legally completed, and that doubts must be resolved in favor of resolution on the merits, particularly absent any showing of prejudice. Rosa reiterates that the motion is timely, having been filed within six months of the default and about a month after the judgment, and that the standard is reasonable time rather than earliest possible action.

Analysis

The Court finds Rosa's motion unpersuasive and unavailing. First, for the same reasons set forth above in connection with Gary's motion to set aside, the Court finds the complaint's allegations provided Rosa with sufficient notice of Plaintiff's claimed damages and that therefore the Court did not exceed its jurisdiction in awarding the monetary damages portion of the default judgment. (Compl., ¶¶ 18, 36, 51, Prayer for Relief, 14:8-9; *Becker v. S.P.V. Constr. Co.* (1980) 27 Cal.3d 489, 494; Default Judgment (6/26/26).)

Second, the Court finds substitute service on Rosa was valid. More specifically, the Court finds Gary's declaration regarding the process server's service attempt not credible. (*Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 940, fn. 6 (*Fernandes*), italics in original ["a declaration of non-service if credited by the trial court can rebut the presumption of proper service... the trial court herein expressly declined to credit [defendant's] declarations, finding them 'unpersuasive.'"]); Gary is an interested codefendant with Rosa in this matter, whereas Alma Nava is an uninterested third party and registered process server who provided a meticulously detailed account of the service attempt, including the fact that she provided two copies of the summons and complaint in the same envelope. (See Gary Delgado Decl., ¶ 4; see generally Nava Decl.) Gary's declaration therefore failed to rebut the presumption of validity afforded to Alma Nava's return. (See Evid. Code, § 647; *Fernandes*, supra, 16 Cal.App.5th at p. 940, fn. 6.) Additionally, Rosa's contention that she did not receive the mailed copy of the summons and complaint does not defeat service. (See *Am. Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390 [trial court "not required to accept self-serving evidence contradicting the process server's declaration"].)

Third, while Rosa's motion is timely since it was filed within six months of the default entry on February 5, 2026, the Court finds Rosa's excusable neglect arguments unavailing. Given the Court's finding that substitute service on Rosa was valid, Rosa's subjective belief service was not valid does not constitute excusable neglect. (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206 [attorney's "unsupported, subjective belief that she had not been served... failed to demonstrate that the default judgment was entered as [sic] result of mistake, inadvertence, surprise or excusable neglect. [Citation.]"]); The Court also agrees with Plaintiff that Rosa's argument is circular, as the purported excuse depends entirely on Rosa accepting the very service that Rosa contends is defective. Rosa offered no other independent excuse for failing to act on the papers mailed to her over the ensuing months. (See generally Rosa Delgado Decl.; see also *Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1181, 1183 [the law's preference of resolution on the merits does not override the absence of a valid, diligently pursued excuse].) Accordingly, the Court denies Rosa's motion.

Nevertheless, if the parties agree to eliminate the treble damage award, the Court will modify the judgment accordingly and reduce the damages portion of the default judgment to \$0.00. (See Opp., 2:22-26; Reply, 3:17-4:1; *Phelan v. Superior Ct. in & for City & Cnty. of San Francisco* (1950) 35 Cal.2d 363, 373 ["It is well settled, of course, that such an order modifying a prior judgment is proper if made with the consent of the parties. [Citations.]"]; *Greenup v. Rodman* (1986) 42 Cal.3d 822, 830 [plaintiff given option to accept reduced judgment or file an amended complaint and reopen the default].)

Based on the foregoing, the Court DENIES Defendant Rosa Delgado's Motion to Set Aside Default Judgment as Void and/or Vacate Entry of Default and Default Judgment Due to Surprise and/or Excusable Neglect. However, if the parties consent to eliminate the treble damages award from the default judgment, the Court will modify the monetary damages portion of the June 26, 2026 default judgment to \$0.00 as to Defendants Gary Delgado and Rosa Delgado.

CONCLUSION

The Court DENIES Defendant Gary Delgado's Motion to Set Aside Default Judgment as Void.

The Court DENIES Defendant Rosa Delgado's Motion to Set Aside Default Judgment as Void and/or Vacate Entry of Default and Default Judgment Due to Surprise and/or Excusable Neglect.

However, if the parties consent to eliminate the treble damages award from the default judgment, the Court will modify the monetary damages portion of the June 26, 2026 default judgment to \$0.00 as to Defendants Gary Delgado and Rosa Delgado.

Plaintiff is ordered to give notice of the Court's rulings within five calendar days of this order.